

The Assam Opium Prohibition (Amendment) Rules, 1974

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State of Assam - Act

The Assam Opium Prohibition (Amendment) Rules, 1974

ASSAM

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The Assam Opium Prohibition (Amendment) Rules, 1974

Act 11 of 1974

Published on 24 July 1974

Commenced on 24 July 1974

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The Assam Opium Prohibition (Amendment) Rules, 1974

Published vide Act

No. 11 of 1974

, Published in the Assam Gazette, Part 2A, dated 24-7-1974, Page 1107

Last Updated 12th February, 2020

Notification No. Ex-12/73/119, dated the 29th May, 1974. - In exercise of the powers conferred by sub-Section (2) of Section 38 of the Assam Opium Prohibition Act, 1974 (Assam Act

23 of 1974

), the Governor of Assam is pleased further to amend the Assam Opium Prohibition Rules, 1948 in the manner hereinafter appearing, the same having published under Government Notification No. Ex-12/73/12, dated the 18th March, 1974 as required under sub-section (1) of Section 38 of the aforesaid Act:

1.
Short title and commencement.
(1)
These rules may be called the Assam Opium Prohibition (Amendment) Rules, 1974.
(2)
They shall come into force at once.

2.
Insertion of sub-Rules (3) and (4) under Rule 2.
- The following sub-Rules (3) and (4) shall be inserted under Rule 2 :

"(3) 'Chief Executive Officer' means an Officer of the State Excise Department whose services may be placed either wholly or partly at the disposal of the State Prohibition Council on such terms and conditions and on such salary and allowances as may be determined by the State Government for carrying out such duties and functions as may be prescribed by the State Prohibition Council.

(4)
'Secretary to the Prohibition Committee of the District or any part thereof means an officer of the State Excise Department not below the rank of Inspector of Excise whose services may be placed, either wholly or partly, at the disposal of such Prohibition Committee on such terms and conditions and on such salary and allowances as may be determined by the State Government for carrying out such duties and functions as may be prescribed by the State Prohibition Council."

3.
The following shall be substituted for Rule 3 and the existing rule shall be re-numbered serially:
"3. The State Prohibition Council constituted under Section 17(1) of the Act shall be organisational set up at the top for the purposes of the Act and its responsibilities shall be to enforce the penal provisions of the Act and to organise, direct, supervise and control the enforcement and propaganda Staff and the Prohibition Committee."

4.
Delete the Rules 9, 10, 11, 12, 14, 15, 16, 22, 23 and 24 and re-number the existing Rules 13, 17, 18, 19, 20, 21, 25, 26 and 27 as Rules 9, 10, 11, 12, 13, 14, 15, 16 and 17 and for the words "Prohibition Commissioner" wherever occurring in these rules, the words "State Prohibition Council" shall be substituted.

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